

State
FR 152A/25

**BEFORE THE HIGH COURT OF KARNATAKA AT
BENGALURU**

F.R. NO. _____/2025

W.P.No. _____/2025 (528)

PRESENTATION FORM

NITIN RAMESH Advocate No.6, Vishwanatha Rao Road, Off Race Course Road, Madhavanagar, Bangalore-560001 nitinramesh@nitichambers.com Mobile:- 9900493990	<u>Between:-</u> A.M MANJUNATHA KUMAR & ANR. <u>And:-</u> THE STATE OF KARNATAKA Represented by Riyaz Ahammed Shareef, Asst. Director of Agriculture, Madikeri	
Sl.No.	Description of Paper Presented	Court Fee
1.	MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 & 227 OF THE CONSTITUTION OF INDIA R/W SECTION 528 OF BNSS, 2023	
	TOTAL	

No. of copies furnished

**Other side served
Received Papers with
Court fee labels**

Presented by: Petitioner.
Bengaluru
Dated: 16/01/2025

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Petition No. _____/2025 (528)

Between:

A.M MANJUNATHA KUMAR & ANOTHER

... Petitioners

And:

STATE OF KARNATAKA

Represented by Riyaz Ahammed Shareef

Asst. Director of Agriculture

Madikeri

... Respondent

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Place: Bangalore

Date: 16/01/2025

Advocate for Petitioners

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Petition No. _____/2025 (528)

Between:

A.M MANJUNATHA KUMAR & ANOTHER

... Petitioners

And:

STATE OF KARNATAKA

Represented by Riyaz Ahammed Shareef

Asst. Director of Agriculture

Madikeri

... Respondent

SYNOPSIS

Date	Particulars
12/10/2022	Respondent conducted an inspection at a retail outlet of the 1 st Petitioner namely Coorg Agri Centre and collected samples of fertilizer named '17:17:17 NPK Mixture' which was manufactured by Farmer Fertilizer Company. Mahazar was also conducted on the same day.
7/11/2022	The samples of '17:17:17 NPK Mixture' was sent for examination to Fertilizer Control Laboratory, Belthangady. The analysis report stated that the samples were 'non-standard'.
16/12/2022	The Respondent issued Show cause notices to the Petitioners. The manufacturer in their response sought for re-analysis of the samples.

29/12/2022	Based on the request of the manufacturer, the Respondent sent the sample for reanalysis to Fertilizer Testing Laboratory, Bardoli, Surat, Gujarat. The reanalysis report dated 28/2/2023 mentioned the samples to be not in accordance with specification.
27/7/2024	The Respondent initiated a private complaint in PCR No.232/2024 against the Petitioners before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for alleged violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955. (Anx-A)
6/8/2024	By way of a non-descriptive order, the Hon'ble Addl. Civil Judge & JMFC, Madikeri, took cognizance of the private complaint and the case against the Accused & CC No.2167/2024 came to be registered for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955. (Anx-B)
Jan 2025	Being aggrieved by the initiation of proceedings against the Petitioners in CC No.2167/2024 arising out of PCR No.232/2024 before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for violation of Sec 19(A)(B)

	of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955, the Petitioners have approached this Hon'ble court seeking quashing of the entire proceedings on the following primary grounds: - Violation of Sec 10 of the Essential Commodities Act, 1955 which requires company/firm to be made a party. - Non-compliance of the procedure laid down in Sec 202 CRPC - Cognizance order is a non-speaking, non-descriptive order.
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BRIEF FACTS OF THE CASE

The 1st Petitioner is the proprietor of the retail outlet named Coorg Agri Centre based in Madikeri whereas the 2nd Petitioner is a partner of the fertilizer manufacturing partnership firm named Farmer Fertilizer Company.

Being aggrieved by the initiation of proceedings against the Petitioners in CC No.2167/2024 arising out of PCR No.232/2024 before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955, the Petitioners have approached

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this Hon'ble court seeking quashing of the entire proceedings on the following primary grounds:

- a. Violation of Sec 10 of the Essential Commodities Act, 1955 which requires company/firm to be made a party.
- b. Non-compliance of the procedure laid down in Sec 202 CrPC
- c. Cognizance order is a non-speaking, non-descriptive order.

Place: Bengaluru

Date:

Advocate for Petitioners

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

(Memorandum of Writ Petition under Article 226 & 227 of the
Constitution of India r/w Sec 528 of BNSS, 2023)

ORIGINAL JURISDICTION

Hon'ble Addl. Civil Judge & JMFC, Madikeri
CC No.2167/2024 arising out of PCR No.232/2024

Writ Petition No. _____/2025 (528)

RANK IN

Between:

Trial Court High Court

1. A.M MANJUNATHA KUMAR

Wrongly mentioned as M.M.Kumar in the PCR

Aged about 63 years

S/o. A.B. Muthanna

Proprietor of Coorg Agri Centre

Sri Lakshmi Complex

Opp State Bank of India Main Branch

Madikeri-571201

Accused No.1

Petitioner No.1

2. SRIKANTH REDDY K.B

Wrongly mentioned as Srikanth Reddy in PCR

Aged about 56 years

S/o. Late K.B. Lakshmi Reddy

Working as a Partner

Farmers Fertilizer Company

Plot No.324, KIADB,

Industrial Badavane,

Opp Krishna Granite

Holenarasipura Road

Hassan-573201

Accused No.2

Petitioner No.2

And:

STATE OF KARNATAKA

Represented by Riyaz Ahammed Shareef

Assistant Director of Agriculture

Office of the Joint Director of Agriculture

Madikeri-571201

Complainant

Respondent

**MEMORANDUM OF WRIT PETITION UNDER ARTCILE 226 &
227 OF THE CONSTITUTION OF INDIA R/W SEC 528 OF BNSS,
2023**

The Petitioners above-named most humbly submits as follows:

1. The addresses of the Petitioners for the purpose of service of summons, notice etc., of this Hon'ble Court are correctly furnished in the cause title and they may also be notified through their counsel: **NITIN RAMESH & ASSOCIATES**, Advocates, No.6, Vishwanatha Rao Road, Off Racecourse Road, Madhavanagar, Bengaluru-560 001.
2. The address of the Respondent for similar purpose is correctly furnished in the cause title.
3. Being aggrieved by the initiation of proceedings against the Petitioners in CC No.2167/2024 arising out of PCR No.232/2024 before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955, the Petitioners have approached this Hon'ble court seeking quashing of the entire proceedings. Certified copy of the PCR No.232/2024 along with entire order sheet in CC No.2167/2024 are herewith produced as **Annexure-A & B** respectively.
4. The 1st Petitioner is the proprietor of the retail outlet named Coorg Agri Centre based in Madikeri whereas the 2nd Petitioner is a partner in the fertilizer manufacturing partnership firm named

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Farmer Fertilizer Company. Copy of the manufacturing license, partnership agreement & GST certificate of Farmer Fertilizer Company are herewith produced as **Annexure-C, D & E**. Copy of the GST certificate of Coorg Agri Centre is herewith produced as **Annexure-F**.

BRIEF FACTS OF THE CASE

5. The Respondent conducted an inspection on 12/10/2022 at a retail outlet of the 1st Petitioner namely Coorg Agri Centre and collected samples of fertilizer named '17:17:17 NPK Mixture' which was manufactured by Farmer Fertilizer Company. Mahazar was also conducted on the same day.
6. The samples of '17:17:17 NPK Mixture' were sent for examination to Fertilizer Control Laboratory, Belthangady. The analysis report dated 7/11/2022 stated that the samples were 'non-standard'.
7. The Respondent thereafter issued Show cause notices to the Petitioners. The manufacturer in their response dated 16/12/2022 sought for re-analysis of the samples.
8. Based on the request of the manufacturer, the Respondent sent the sample for reanalysis to Fertilizer Testing Laboratory, Bardoli, Surat, Gujarat on 29/12/2022. The reanalysis report dated 28/2/2023 mentioned the samples to be not in accordance with specification.

9. The Respondent on 27/7/2024 initiated a private complaint in PCR No.232/2024 against the Petitioners before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for alleged violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955.
10. By way of a non-descriptive order, the Hon'ble Addl. Civil Judge & JMFC, Madikeri, took cognizance of the private complaint and the case against the Accused & CC No.2167/2024 came to be registered for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955.
11. Being aggrieved by the initiation of proceedings against the Petitioners in CC No.2167/2024 arising out of PCR No.232/2024 before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955, the Petitioners have approached this Hon'ble court seeking quashing of the entire proceedings on the following grounds:

GROUND

12. The initiation of private complaint is arbitrary, suffers from legal infirmities, lacks application of mind and is against principles of law and equity. There is no *prima facie* case made

out against the Accused/Petitioners for initiation of the present criminal proceedings.

13. At the outset, it bears mentions that 'Fertilizer' is a commodity listed as Item 2 of the Schedule to the Essential Commodities Act and hence the provisions therein are squarely applicable to matters pertaining to fertilizers.

14. Firstly, the proceeding initiated against the Petitioners herein are in violation of Sec 10 of the Essential Commodities Act which mandates that '**person in-charge of the company as well as the company**' are to be arrayed as Accused in the event of any contravention. In the present case, the 1st Petitioner is the proprietor of the retail outlet named Coorg Agri Centre based in Madikeri whereas the 2nd Petitioner is a partner at the fertilizer manufacturing partnership firm named Farmer Fertilizer Company. Neither the retail proprietorship nor the manufacturing firm and its Responsible person have been arrayed as parties thereby vitiating the entire prosecution. It is submitted that the position of law regarding Sec 10 of EC Act is settled by the decision of the Hon'ble Supreme Court in *C.V. Parekh's case* (1970 3 SCC 491) and thereafter by several decisions of this Hon'ble court as well. Copy of the judgment in CRLP

No.100296/2023 passed by the co-ordinate bench of this Hon'ble Court is produced herewith as **Annexure-G**.

15. There is utter non-application of mind by the learned Trial court because cognizance of the alleged offence has been taken without complying with Sec 202 of CrPC which mandates that if the Accused resides outside the jurisdiction of the court, the Magistrate is required to conduct an 'inquiry' before issuance of summons under Sec 204 of CrPC. The same is also in contravention of the Hon'ble Supreme Courts' decision in *Vijay Dhanuka case (2014 14 SCC 638)*. In the present case, Petitioner No.2 is admittedly based out of Hassan and thus compliance of Sec 202 CrPC becomes necessary.
16. The perusal of order sheet reveals non-application of mind as the order taking cognizance is a non-descriptive and a non-speaking order. In private complaint cases unlike the state prosecution cases there is a greater duty upon the Magistrate to display application of mind through a reasoned order since the facility of a full-scale investigation by the Police is not available to the competent Magistrate, as per settled the law of precedent.
17. It is submitted that the 2nd Petitioner has been wrongly arrayed as Accused No.2 although he is not the Responsible person of the manufacturing firm. The License of the

manufacturer mentions Sri. Lakshmegowda as the Responsible person.

18. The statements made by the Petitioners in this petition are without any prejudice to the defense they may have to take before this Hon'ble Court or the trial court, as the case may be.
19. The Petitioners crave the kind indulgence of this Hon'ble Court to allow them to urge additional grounds at the time of hearing.
20. The Petitioners have not filed any other petition on the same cause of action or same CC No.2167/2024 before this Hon'ble Court or before any other Court & there is no other alternative remedy apart from preferring this petition.

INTERIM GROUNDS

21. On the basis of a non-descriptive cognizance order, summons have been issued to the Petitioners in blatant violation of Sec 10 of the Essential Commodities Act. If STAY of further proceeding is not provided, the trial will soon commence and the Writ proceedings may become infructuous.

PRAYER

WHEREFORE, the Petitioners in the above case most humbly pray this Hon'ble Court be pleased to: -

- a. Quash the entire proceeding against the Petitioners/Accused No.1 & 2 in CC No.2167/2024 arising out of PCR No.232/2024 before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955, at **Annexure-A, & B.**
- b. And grant such other relief/s as this Hon'ble Court deems fit in the interest of justice.

INTERIM PRAYER

WHEREFORE, during the pendency of the Petition, this Hon'ble Court may be pleased to STAY the further proceedings in CC No.2167/2024 arising out of PCR No.232/2024 before the Hon'ble Addl. Civil Judge & JMFC, Madikeri, for violation of Sec 19(A)(B) of the Fertilizer Control Order, 1985 & Sec 7 of the Essential Commodities Act, 1955, at **Annexure-A & B** insofar as the Petitioners are concerned, to meet the ends of equity and justice.

Place: Bengaluru

Date: 16/01/2025

Advocate for Petitioner

NITIN RAMESH

ADVOCATE

No. 6, Vishwanath Road,
Off Race Course Road,
Madhavanagar, Bangalore-560001
Email: nitinramesh@nitichambers.com
Mob: 9900493990

ADVOCATE FOR PETITIONERS

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Petition No. _____/2025 (528)

Between:

A.M MANJUNATHA KUMAR & ANOTHER

... Petitioners

And:

STATE OF KARNATAKA

Represented by Riyaz Ahammed Shareef

Asst. Director of Agriculture

Madikeri

... Respondent

VERIFYING AFFIDAVIT

I, **SRIKANTH REDDY K.B.**, Wrongly mentioned as Srikanth Reddy in PCR, aged about 56 years, S/o. Late K.B. Lakshmi Reddy, Working as a Partner, Farmers Fertilizer Company, Plot No.324, KIADB, Industrial Badavane, Opp Krishna Granite, Holenarasipura Road, Hassan-573201, currently in Bangalore do hereby solemnly affirm and state on oath as follows:

1. I am Petitioner No.2 and as such I am conversant with the facts of this case and hence I am competent to swear to this Affidavit. I am also swearing to this Affidavit on behalf of the other Petitioner.
2. I state that para 1 to ____ of the accompanying Writ petition are true and correct to the best of my knowledge, information and belief.
3. I state that Document Nos. _____ are certified copies and Document Nos. _____ are true copy of originals.

Verification

I state that this is my name and signature and what is stated in the above paras are true and correct to the best of my knowledge and information.

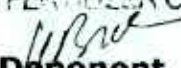
For FARMERS FERTILIZER COMPANY

Identified by me

Advocate

Place:

Dated:


Deponent
Authorised Signatory

ದಂಡ ಪ್ರಕ್ರಿಯಾ ಸಂಹಿತೆ, 1973 ರ ಕಲಂ 200 ರಡಿ ದಾಖಲಿಸುವ ದೂರು
(ಕಳವು ರಸಗೊಬ್ಬರ ಸಂದರ್ಭದಲ್ಲಿ)

ಪ್ರಥಮ ದರ್ಜೆ ನ್ಯಾಯಕ ದಂಡಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ, ಮಡಿಕೇರಿ ರವರ ಮುಂದೆ
ಪಿ.ಸಿ.ಆರ್. ಸಂಖ್ಯೆ: 232/24/2023

ಶ್ರೀ ರಿಯಾಜ್ ಅಹಮ್ಮದ್ ಷರೀಫ್
ಸಹಾಯಕ ಕೃಷಿ ನಿರ್ದೇಶಕರು(ಜಾ.ದ)
ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರ ಕಛೇರಿ, ಮಡಿಕೇರಿ
(ಸರ್ಕಾರವನ್ನು ಪ್ರತಿನಿಧಿಸುವ ಅಧಿಕಾರಿ)

: ಫಿರ್ಯಾದಿ

ವಿರುದ್ಧ

1. ಶ್ರೀ ಎ.ಎಂ. ಕುಮಾರ್,
ಕೂಗ್ಗ ಎಗ್ರಿ ಸೆಂಟರ್,
ಶ್ರೀ ಲಕ್ಷ್ಮಿ ಕಾಂಪ್ಲೆಕ್ಸ್,
ಸ್ಟೇಟ್ ಬ್ಯಾಂಕ್ ಆಫ್ ಇಂಡಿಯಾದ ಎದುರು,
ಮುಖ್ಯ ಶಾಖೆ,
ಮಡಿಕೇರಿ - 571201
ದೂರ: 9448433170/9483263605

Comp. & Dep. in
the long
ground in sufficient
high & low
Call on 6/8
12/1/2024

: ಆರೋಪಿವಾರರು

2. ಶ್ರೀ ಶ್ರೀಕಾಂತ್ ರೆಡ್ಡಿ,
ಫಾರ್ಮರ್ಸ್ ಪರ್ಫಾರ್ಮೆನ್ಸ್ ಕಂಪೆನಿ,
ಪ್ಲಾಟ್ ಸಂಖ್ಯೆ: 324, ಕೆಎಡಿಬಿ
ಕೈಗಾರಿಕಾ ಬಡಾವಣೆ, ಕೃಷ್ಣ ಗ್ರಾನೈಟ್‌ನ ಎದುರು
ಹೊಳೆನರಸಿಪುರ ರೋಡ್,
ಹಾಸನ - 573201
ದೂರ: 9448052010/9480310309.

ದಂಡ ಪ್ರಕ್ರಿಯಾ ಸಂಹಿತೆ, 1973 ರ ಕಲಂ 200 ರಡಿ ಸಲ್ಲಿಸಿದ ಫಿರ್ಯಾದಿ

1. ಫಿರ್ಯಾದಿಯು ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ: ಕೃಷ/06/ಕೃಪಬ/2019 ದಿನಾಂಕ:
13.11.2020 ರನ್ವಯ ಕೊಡಗು ಜಿಲ್ಲೆ, ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರ ಕಛೇರಿಗೆ ಸಹಾಯಕ ಕೃಷಿ

CC-0 Corroam 6/



PC 232/24 (3)
CC. 2167/2024

ನಿರ್ದೇಶಕರು(ಜಾ.ದ) ಹುದ್ದೆಗೆ ನೇಮಕಗೊಂಡು 18.12.2020 ದಿನಾಂಕದಿಂದ ಕರ್ತವ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುತ್ತಾರೆ. ಸದರಿ ಸರ್ಕಾರದ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

2. ರಸಗೊಬ್ಬರ (ನಿರವಯವ, ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985 ರ ಕ್ಲಾಸ್ 27 ರನ್ವಯ ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ:VGD/114/AGS/2012 ದಿನಾಂಕ: 05.01.2013 ರಡಿ ಫಿರ್ಯಾದಿಯ ಹುದ್ದೆಯನ್ನು ಕೊಡಗು ಜಿಲ್ಲೆಯ ವ್ಯಾಪ್ತಿಗೆ ರಸಗೊಬ್ಬರ ಪರಿವೀಕ್ಷಕರನ್ನಾಗಿ ನೇಮಿಸಲಾಗಿರುತ್ತದೆ. ಸರ್ಕಾರದ ಅಧಿಸೂಚನೆಯ ಪ್ರತಿಯನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

3. ಒಂದನೇ ಆರೋಪಿಯು ಶ್ರೀ ಎ.ಎಂ. ಕುಮಾರ್, ಕೂರ್ಗ್ ಎಗ್ರಿ ಸೆಂಟರ್, ಶ್ರೀ ಲಕ್ಷ್ಮಿ ಕಾಂಪ್ಲೆಕ್ಸ್, ಸ್ಟೇಟ್ ಬ್ಯಾಂಕ್ ಆಫ್ ಇಂಡಿಯಾದ ಎದುರು, ಮುಖ್ಯ ಶಾಖೆ, ಮಡಿಕೇರಿ ಇವರು 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರ ಮಾರಾಟಗಾರರಾಗಿರುತ್ತಾರೆ. 2ನೇ ಆರೋಪಿ ಶ್ರೀ ಶ್ರೀಕಾಂತ್ ರೆಡ್ಡಿ, ಫಾರ್ಮರ್ಸ್ ಪರ್ಫಾರ್ಮೆನ್ಸ್ ಕಂಪೆನಿ, ಪ್ಲಾಟ್ ಸಂಖ್ಯೆ: 324, ಕೆಎಎಡಿಜ ಕೈಗಾರಿಕಾ ಬಡಾವಣೆ, ಕೃಷ್ಣ ಗ್ರಾನೈಟ್‌ನ ಎದುರು ಹೊಳೆನರಸಿಪುರ ರೋಡ್, ಹಾಸನ ಇವರು 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರ ತಯಾರಕ ಕಂಪೆನಿಯ ಜವಾಬ್ದಾರಿಯಾದ ಅಧಿಕಾರಿಯಾಗಿರುತ್ತಾರೆ.

4. ರಸಗೊಬ್ಬರ (ನಿರವಯವ, ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985ರ ಕ್ಲಾಸ್ 28(1) (ಸಿ) ರನ್ವಯ ಫಿರ್ಯಾದಿಯು ದಿನಾಂಕ: 12.10.2022 ರಂದು ಸುಮಾರು ಅಪರಾಹ್ನ 12.00 ಗಂಟೆಯಿಂದ 4.00 ಗಂಟೆಯವರೆಗೆ ಕೂರ್ಗ್ ಎಗ್ರಿ ಸೆಂಟರ್, ಮಡಿಕೇರಿ ಇವರ ರಸಗೊಬ್ಬರ ಮಾರಾಟ ಮಳಿಗೆಯಲ್ಲಿ ರೋಶನ್ ಕೆ.ಎಸ್. ಹಾಜರಿರುತ್ತಾರೆ. ಪಂಚರ ಸಮಕ್ಷಮ ಸದರಿ ಮಾರಾಟ ಮಳಿಗೆಯನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ ಫಾರ್ಮರ್ಸ್ ಪರ್ಫಾರ್ಮೆನ್ಸ್ ಕಂಪೆನಿಯ 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರದ 50 ಕೆ.ಜಿ. ತೂಕದ 194 ಚೀಲಗಳನ್ನು ದಾಸ್ತಾನಿಗೊಳಿಸಿರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ನಂತರ ವಿಶ್ಲೇಷಣೆಗಾಗಿ ಸದರಿ ರಸಗೊಬ್ಬರದ ಮಾದರಿಗಳನ್ನು ಸಂಗ್ರಹಿಸಲು ನಿರ್ದೇಶಿಸಿ ಆ ಮಾರಾಟ ಮಳಿಗೆಯಲ್ಲಿ ಇದ್ದ ರೋಶನ್ ಕೆ.ಎಸ್. ರವರಿಗೆ ವಿವರಿಸಲಾಯಿತು. ಅನಂತರ ಪಂಚರ ಸಮಕ್ಷಮ ಸದರಿ ರಸಗೊಬ್ಬರದ ಚೀಲಗಳಿಂದ ರಸಗೊಬ್ಬರ (ನಿರವಯವ, ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985 ರ ಶೆಡ್ಯೂಲ್-II/III/IV/V/VI/VII ರಲ್ಲಿ ತಿಳಿಸಿರುವಂತೆ ವಿದಾಯಕ ರೀತಿಯಲ್ಲಿ ಮಾದರಿಗಳನ್ನು ತೆಗೆದು ಆ ಬಗ್ಗೆ ಮಹಜರ್ ಕ್ರಮ ಜರುಗಿಸಲಾಯಿತು. ಸದರಿ ಮಹಜರನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

5. ರಸಗೊಬ್ಬರ (ನಿರವಯವ ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985 ರನ್ವಯ ಶೆಡ್ಯೂಲ್-II/III/IV/V/VI/VII ರಲ್ಲಿ ತಿಳಿಸಿರುವಂತೆ ಒಂದು

ಶ್ರೀ ದಿ ಹೋಮೋನಾಲ್ಡ್

ಮಾದರಿಯನ್ನು 1ನೇ ಯ ಆರೋಪಿಗೆ ನೀಡಿ ಸ್ವೀಕೃತಿ ಪಡೆಯಲಾಯಿತು ಮತ್ತು ಉಳಿದ 3ನೇ ಮಾದರಿಯನ್ನು ವಿಧಾಯಕ ರೀತಿಯಲ್ಲಿ ಮೇಲಾಧಿಕಾರಿಗಳಿಗೆ ನೀಡಲಾಯಿತು. 1ನೇ ಆರೋಪಿಯಿಂದ ಪಡೆದ ಸ್ವೀಕೃತಿ ಪತ್ರ (J Form) ಹಾಗೂ ರಸಗೊಬ್ಬರ ವಿಶ್ಲೇಷಕರಿಗೆ ನೀಡಿದ ಪತ್ರವನ್ನು (K & P Form) ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

6. ಉಪ ಕೃಷಿ ನಿರ್ದೇಶಕರು, ಫರ್ಮಲೈಸರ್ ಕಂಪ್ಲೋರ್ ಲ್ಯಾಬೋರೇಟರಿ, ಬೆಳ್ಳಂಗಡಿ, ದಕ್ಷಿಣಕನ್ನಡ ಪ್ರಯೋಗಾಲಯದ ರಸಗೊಬ್ಬರ ವಿಶ್ಲೇಷಕರು, ಅವರಿಗೆ ಕಳುಹಿಸಲಾದ ರಸಗೊಬ್ಬರ ಮಾದರಿಯನ್ನು ವಿಶ್ಲೇಷಿಸಿ, ಆ ಬಗ್ಗೆ ತಮ್ಮ ವಿಶ್ಲೇಷಣಾ ವರದಿಯನ್ನು No.DDA/FCL/BLTH ANL/RES/OCT-499/22 ದಿನಾಂಕ: 07.11.2022 ರಂದು ನೀಡಿರುತ್ತಾರೆ. ಸದರಿ ವಿಶ್ಲೇಷಣಾ ವರದಿಯಲ್ಲಿ ಫಾರ್ಮಲ್ಸ್ ಫರ್ಮಲೈಸರ್ ಕಂಪೆನಿ, ಹಾಸನ ಇವರ 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರವನ್ನು ಕಳಪೆ (Non Standard) ರಸಗೊಬ್ಬರವೆಂದು ಘೋಷಿಸಲಾಗಿದೆ. ಈ ವರದಿಯನ್ನು ಆಧರಿಸಿ ಒಂದನೇಯ ಆರೋಪಿ ಮತ್ತು 2ನೇ ಆರೋಪಿಗಳಿಗೆ ವಿಶ್ಲೇಷಣಾ ವರದಿ ಮತ್ತು ನೀಡಿದ ತಿಳುವಳಿಕೆ ಪತ್ರಗಳನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

7. ಫಾರ್ಮಲ್ಸ್ ಫರ್ಮಲೈಸರ್ ಕಂಪೆನಿ, ಹಾಸನ ಇವರು ದಿನಾಂಕ: 16.12.2022 ರಂದು ಮಾದರಿಯನ್ನು ಮರು ವಿಶ್ಲೇಷಣೆಗೆ ಕಳುಹಿಸಲು ಸಹಾಯಕ ಕೃಷಿ ನಿರ್ದೇಶಕರು(ಜಾರಿದಳ) ಹಾಗೂ ರಸಗೊಬ್ಬರ ಪರಿವೀಕ್ಷಕರು, ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರ ಕಛೇರಿ, ಮಡಿಕೇರಿಯಾದ ನನಗೆ ಮನವಿ ಪತ್ರ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಅದರಂತೆ ದಿನಾಂಕ: 29.12.2022 ರಂದು ರಸಗೊಬ್ಬರದ ರೆಪ್ರೆ ಮಾದರಿಯನ್ನು ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು, ರಸಗೊಬ್ಬರ ನಿಯಂತ್ರಣಾ ಪ್ರಾಧಿಕಾರಿ ಮತ್ತು ಪರಿಕರ ವಿಭಾಗ, ಕೃಷಿ ಆಯುಕ್ತರ ಕಾರ್ಯಾಲಯ, ಬೆಂಗಳೂರು ಇವರಿಗೆ ಕಳುಹಿಸಿಕೊಡಲಾಗಿದೆ. ಪ್ರತಿಯನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

8. Chemist, ADA, Fertilizer Testing Laboratory, Bardoli District, Surat, Gujarath State ಪ್ರಯೋಗಾಲಯದ ರಸಗೊಬ್ಬರ, ವಿಶ್ಲೇಷಕರು ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ: FTL/TECH/AR/1588/2023 ದಿನಾಂಕ: 28.02.2023 ರಂದು ನೀಡಿದ ವಿಶ್ಲೇಷಣಾ ವರದಿಯಲ್ಲಿ 17:17:17 ಮಿಶ್ರಣ ಗೊಬ್ಬರವನ್ನು ಕಳಪೆ ಎಂದು ವರದಿ ನೀಡಿರುತ್ತಾರೆ. ಸದರಿ ವರದಿಯನ್ನು ಆಧರಿಸಿ ಫಾರ್ಮಲ್ಸ್ ಫರ್ಮಲೈಸರ್ ಕಂಪೆನಿ, ಹಾಸನ ಮತ್ತು ಕೂರ್ಗ್ ಎಫ್ರಿ ಸೆಂಟರ್, ಮಡಿಕೇರಿ ಇವರಿಗೆ ವಿಶ್ಲೇಷಣಾ ವರದಿಯನ್ನು ನೀಡಲಾಗಿದೆ. ನೀಡಿದ ಪತ್ರಗಳನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

9. ವಿಶ್ಲೇಷಣಾ ವರದಿ ಪ್ರಕಾರ ಫಾರ್ಮಲ್ಸ್ ಫರ್ಮಲೈಸರ್ ಕಂಪೆನಿ, ಹಾಸನ ಇವರ 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರವನ್ನು ಕಳಪೆ (non-standard) ರಸಗೊಬ್ಬರವೆಂದು

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ಘೋಷಿಸಲಾಗಿದ್ದು, ಆರೋಪಿಗಳು ರಸಗೊಬ್ಬರಗಳ (ನಿರವಯವ, ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985 ಕ್ಲಾಸ್ 19 (ಎ)/(ಬಿ) ಗಳನ್ನು ಉಲ್ಲಂಘಿಸಿದ್ದು, ಆರೋಪಿಗಳು ಅಗತ್ಯ ವಸ್ತುಗಳ ಅಧಿನಿಯಮ, 1955ರ ಕಲಂ 7 ರಡಿ ಶಿಕ್ಷಾರ್ಹ ಅಪರಾಧವೆಸಗಿರುತ್ತಾರೆ. ರಸಗೊಬ್ಬರ (ನಿರವಯವ, ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985 ವನ್ನು ಅಗತ್ಯ ವಸ್ತುಗಳ ಅಧಿನಿಯಮ, 1955ರ ಕಲಂ 3ರಡಿ ಹೊರಡಿಸಲಾಗಿದೆ.

10. ಎ.ಎಂ. ಕುಮಾರ್, ಕುರ್ಗ್ ಅಗ್ರಿ ಸೆಂಟರ್, ಮಡಿಕೇರಿ ಇವರಿಗೆ ನೀಡಿದ ಫಾರ್ಮ್ ಫರ್ಟಿಲೈಸರ್ ಕಂಬೆನಿ, ಹಾಸನ ಇವರ 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರಕ್ಕೆ ಸಂಬಂಧಿಸಿದ ದಾಸ್ತಾನು ಪುಸ್ತಕ, ಬಿಲ್ ಪುಸ್ತಕ ಮತ್ತು ಇನ್‌ವಾಯ್ಸ್‌ಗಳ ನಕಲು ಪ್ರತಿಯನ್ನು ಹಾಜರುಪಡಿಸಲಾಗಿದೆ.

11. ಒಂದನೇ ಅರೋಹಿಯು ಶ್ರೀ ಎ.ಎಂ. ಕುಮಾರ್, ಕೂರ್ಗ್ ಎರಿ ಸೆಂಟರ್. ಶ್ರೀ ಲಕ್ಷ್ಮಿ ಕಾಂಪ್ಲೆಕ್ಸ್, ಸ್ಟೇಟ್ ಬ್ಯಾಂಕ್ ಆಫ್ ಇಂಡಿಯಾದ ಎದುರು, ಮುಖ್ಯ ಶಾಖೆ, ಮಡಿಕೇರಿ, ಇವರು ಫಾರ್ಮರ್ಸ್ ಪರ್ಫಲೈಸರ್ಸ್ ಕಂಪೆನಿ, ಹಾಸನ ಇವರ 17:17:17 NPK ಮಿಶ್ರಣ ರಸಗೊಬ್ಬರ ಮಾರಾಟ ಮಳಿಗೆಯ ಮಾಲೀಕರಾಗಿರುತ್ತಾರೆ. 2ನೇ ಅರೋಹಿಯು ಶ್ರೀ ಶ್ರೀಕಾಂತ್ ರೆಡ್ಡಿ, ಫಾರ್ಮರ್ಸ್ ಪರ್ಫಲೈಸರ್ಸ್ ಕಂಪೆನಿ, ಪ್ಲಾಟ್ ಸಂಖ್ಯೆ: 324, ಕೆಎಎಡಿಬಿ ಕೈಗಾರಿಕಾ ಬಡಾವಣೆ ಕೃಷ್ಣ ಗ್ರಾನೈಟ್‌ನ ಎದುರು ಹೊಳೆನರಸಿಪುರ ರೋಡ್, ಹಾಸನ ಇವರು ಕಂಪೆನಿಯ ಜವಾಬ್ದಾರಿಯಾದ ಅಧಿಕಾರಿಯಾಗಿರುತ್ತಾರೆ.

12. ಆರೋಪಿಗಳು ಮೇಲ್ಕಂಡ ಅಪರಾಧಗಳನ್ನು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಸರಹದ್ದು/ವ್ಯಾಪ್ತಿಯಲ್ಲಿ ಎಸಗಿರುತ್ತಾರೆ. ಮೇಲ್ಕಂಡ ಎಲ್ಲಾ ಕಾರಣಗಳಿಗಾಗಿ, ಆರೋಪಿಗಳು ರಸಗೊಬ್ಬರ (ನಿರವಯವ, ಸಾವಯವ ಅಥವಾ ಮಿಶ್ರಿತ) (ನಿಯಂತ್ರಣ) ಆದೇಶ, 1985 ರ ಕ್ಲಾಸ್ 19(ಎ)/(ಬಿ) ಯನ್ನು ಉಲ್ಲಂಘಿಸಿ ಶಿಕ್ಷಾರ್ಹ ಅಪರಾಧವೆಸಗಿರುತ್ತಾರೆ ಎಂಬುದು ತೀರ್ಮಾನಿಸಿ. ಅವರನ್ನು ಆಗತ್ಯ ವಸ್ತುಗಳ ಅಧಿನಿಯಮ, 1955 ರ ಕಲಂ 7 ರನ್ವಯ ಶಿಕ್ಷಿಸಬೇಕೆಂದು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವನ್ನು ವಿನಂತಿಸಲಾಗಿದೆ.

ದಿನಾಂಕ:

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Madikeri, K.

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Reg. as P.C.R

Call on 6/8
Sd/-
26/7/2024

Rd. F 1/- vide SI. No. 1668/20 on 11-1-25

Rd. DIF 3/- 1702/20 on 9-1-25

19

ANNEXURE - B

XII-1/25
CMK

dt 26.7.24 Hb No

①

C.C. 2167/2024.

IN THE COURT OF THE ADDL. CIVIL JUDGE & JMFC., MADIKERI

P.C.No. 232/24

Complainant : Riyaz Ahammed Shareef,
Assistant Director of Agriculture,
Office of the Joint Director Agriculture,
Madikeri.

V/s.

Accused : 1. Sri. M.M.Kumar,
Coorg agree Centre,
Sri. Lakshmi Complex,
Opp of State Bank of India
Main Branch, Madikeri 571201
2. Sri. Srikanth Reddy,
Farmers Fertilizers Company,
Plot No.324,, KIADB,
Industrial Badavane, Opp.Krishna Granite
Holenarsipura Road, Hassan 573201.

ORDER SHEET

Dt : 27.07.2024

This complaint is presented by Assistant Director Agriculture, Office of the Joint Director Agriculture, Madikeri for the Complainant U/Sec.200 Cr.P.C. against the accused for the U/Sec. 19(A)(B), Fertilizer Control order 1985 & P/U/Sec. 7 Essential commodities Act 1955.

Copy of the complaint is furnished.
List with eight documents filed.
Process fee not paid.

For Orders:

(Copy of Order Dt: 26.07.2024)

Complainant present and presented the complaint. Perused and satisfied. Register as P.C.R. Call on 06.08.2024



Sd/-(26.07.2024)
Addl. Civil Judge & JMFC.,
Madikeri.

dt 26.07.2024 Hb

6/8/24

C - Asst. Dir. Agriculture

ORDER

Call on

The complaint received through the instance of Assistant Director of Agriculture, Office of the Joint Director Agriculture, Madikeri. The complainant filed complaint along with documents.

The complainant submitted that the offences under Sec.19(A)(B), Fertilizer Control order 1985 and P/U/Sec. 7 Essential Commodities Act 1955. were committed by the accused.

There is sufficient material to take cognizance of the above said offences. Hence, cognizance has been taken.

Office to register the criminal case and issue summons to the accused.

9/12/8

Call on 12-09-2024.

12/8/2024
Addl. Civil Judge & JMFC.,
Madikeri.

12/9/24

C - Asst. Dir.

SIS to ALG

S. of Government nif



③

CC No. 2167/24

The counsel Sri.CMK. for accused No.1 filed vakalath, bail application u/Sec.478 of BNSS to release the accused on bail.

Heard. Perused.

The offences alleged against the accused No.1 is punishable u/Sec.7 of Essential Commodities Act, 1955 which is bailable in nature. Hence, I proceed to pass the following:

ORDER

The bail application filed by accused No.1 is allowed on executing personal bond of Rs.20,000/- with likesum surety.

The counsel for accused No.1 furnished surety by name P.A.Thammaiah, S/o P.M.Achappa, aged 60 years, R/o Ikola village, Madikeri taluk is present and produced RTC of his property bearing Sy.No.89/54 situated at Ikola village and also filed surety affidavit alongwith xerox copy of Aadhaar card.

Perused, accepted, Office to take bonds.

Re issued S/s to accused No.2.

For plea call on 14.10.24.

Wiafpeey

Addl. Civil Judge & JMFC,
Madikeri.



Bail bond taken

Chigant copy put
Rah
Kanfa

28/12/24

14/10/24

C - Assst. Dir. H

A-1 - CMX

SLS to A-2

unsubscribed
15/10

Acc No 1 p d

Given sp to Acc No 2

Call on 12/11

20/10/24

12/11/24

C - Assst. Dir. H

A-1 - CMX

SLS to A-2



Acc No 1 SL d

Compl. HUPP & Allowed

Sp to Acc No 2

Call on 27/12

20/12/24

27/12/24 - Glt

30/12/24

C - Assst. Dir. H

A-1 - CMX

SLS to A-2

Po Hem CL

Call on 28-01-2025

I/c. Addl. Civil Judge & JMFC
Madikeri, Kodagu

P.O. is on C.L.
Call on 28-01-2025.

15/30/24

I/c. Addl. Civil Judge & JMFC.,
Madikeri.

on of 20/11/24 mg

Number of sheets required to be produced
Charges on 4/1/25
Number of sheets produced on
Charges
Amount required to appear on 18/1/25
Amount appeared on 9/1/25
By ready on 9/1/25
By delivered on 9/1/25
By insured by SM
By insured by JSD

Verified that this is
true and accurate copy
of the original. All the
entries appearing in it
shall be held to be correct
and valid.

First Division Assistant
Copyist Examiner
Civil Judge & JMFC Court
Madikeri, Kodagu

23

14/10/24 C - Asst. Director A-1-CMK S/S to A2 Unserved Sd/- 15/10	Accused No.1 Present Re-issue S/S to Accused No.2 Call on 12/11/2024 Sd/- 14/10/24
12/11/24 C - Asst. Director A - 1 - CMK S/S to A-2 Sd/- 12/11	Accused No.1 Absent Counsel files E/P and allowed. Reissue summons to accused No.2 Call on 27/12 Sd/- 12/11/2024

21

27/12/24 30/12/24 C-Assistant Director A-1-CMK S/S tp A-2	PO is on CL Call on 28-01-2025 I/C Addl. Civil Judge & JMFC Madikeri, Kodagu
	PO is on CL Call on 28-01-2025 Sd/- 30/12 I/c. Addl Civil Judge & JMFC., Madikeri.

25

Annexure - C



GOVERNMENT OF KARNATAKA
(DEPARTMENT OF AGRICULTURE)

FORM 'F'

FCO 1985[See clause 15(2) and 18(2)]



K V VENUGOPAL

Registration No - FE20-20116031

Certificate No - JDA/FPP/MIX/NPK/452/2021-22

Date of Issue - 01/02/2022

Renewed Upto - 31/01/2025

CERTIFICATE OF MANUFACTURE IN RESPECT OF PHYSICAL AND GRANULATED NPK MIXTURE OF FERTILIZER / SPECIAL MIXTURE OF FERTILIZER / STATE AND OTHER STATE MICRO NUTRIENT MIXTURE OF FERTILIZER

Received from **K V VENUGOPAL**, M/s. **FARMERS FERTILIZER COMPANY**, FARMERS FERTILIZER COMPANY PLOT NO 324 KIADB INDUSTRIAL AREA H N PURA ROAD HASSAN EMAIL : FFEHSN@GMAIL.COM CELL: 9448052010 is hereby given the certificate of the NPK MIXTURE MANUFACTURER specified below subject to the terms and conditions of this certificate and to the provision of the Fertiliser (Control) Order , 1985.

Details of Responsible Person(clause 24 of FCO, 1985)

Name : LAKSHMEGOWDA

Address : BOOVANAHALLI KASABA HOBLI HASSAN

Email : FFCHSN@GMAIL.COM

Mobile : 9535262341

Details of Qualified Person

Name : KALHOL E B

Address : NO 56 8TH CROSS VIDYANAGARA HASSAN

Email : FFCHSN@GMAIL.COM

Mobile : 9980778750

Qualification : B SC IN CHEMISTRY

Full Particulars of NPK MIXTURE MANUFACTURER

SL No.	Manufacturer Name	Selected Type	Manufacturer Premises Address
1	FARMERS FERTILIZER COMPANY	NOTIFIED PHYSICAL NPK MIXTURE FERTILIZERS • N-P-K (17-17-17) • N-P-K (15-05-05)	FARMERS FERTILIZER COMPANY PLOT NO 324 KIADB INDUSTRIAL AREA H N PURA ROAD HASSAN

SL No.	Terms & Conditions
1	The holder of this certificate shall display the original thereof in a conspicuous place open to the public in part of the principal's premises in which the business of making the physical/granulated mixture of fertilisers/mixtures of micro-nutrient fertilisers is carried on and also a copy of such certificate in similar manner in every other premises in which that business is carried on. The required number of copies of the certificate of the certificate shall be obtained on payment of the fees thereof.
2	The holder of this certificate shall not keep in the premises in which he carries on the business of making

	physical/granulated mixture of fertilisers any mixture of fertilisers/mixture of micronutrient fertilisers in respect of which a certificate of registration has not been obtained under the Fertiliser (Control) Order, 1985.
3	The holder of this certificate shall comply with the provisions of the Fertiliser (Control) Order, 1985 and the notification, order and direction, issued there under for the time being in force.
4	The holder of the certificate shall report forthwith to the Registering Authority any change in the premises specified in the certificate or any new premises in which he carried on the business of making the physical/granulated mixture/mixtures of micro-nutrient fertilisers and shall produce before the authority the original certificate and copies thereof so that necessary corrections may be made therein by that authority.
5	The holder of this certificate shall ensure that the physical/granulated mixture/mixtures of micro-nutrient fertilisers in respect of which a certificate of registration has been obtained is prepared by him or by a person having such qualifications, as may be prescribed by the State Government, from time to time or by any other person under the direction, supervision and control of the holder or the person having the said qualifications.
6	The certificate and copies thereof, if any, will be machine numbered and delivered against the signature of the holder thereof or his agent on the carbon copy of the certificate which will be kept intact bound in the "Certificate Book" by each Registering Authority.

Date : 01/02/2022

Seal: Licensing Authority &
Joint Director of Agriculture

Signature Not Verified

Digitally signed by 
Date: 2022.02.01 12:05:10 +05:30
Reason: Digitally Signed



सत्यमेव जयते

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Annexure-D

INDIA NON JUDICIAL

Government of Karnataka

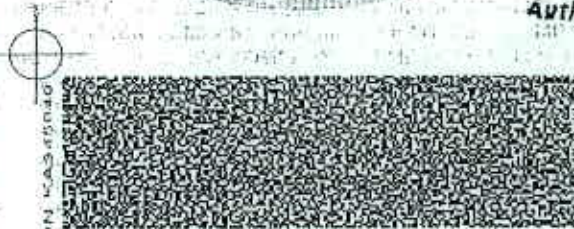
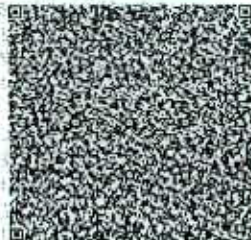
Rs. 1,000

e-Stamp

Certificate No.	: IN-KA34504094885208R
Certificate Issued Date	: 23-Jan-2019 04:45 PM
Account Reference	: NONACC (EI)/ kaksfcl08/ HASSAN2/ KA-HS
Unique Doc. Reference	: SUBIN:KAKAKSFCL0803066166808137R
Purchased by	: K.V. VENUGOPAL K.B. SRIKANTH REDDY AND HONNAPPA
Description of Document	: Article 40(B) Reconstitution(without immoveable property)
Description	: RECONSTITUTION DEED
Consideration Price (Rs.)	: 0 (Zero)
First Party	: FARMERS FERTILIZER COMPANY
Second Party	: K.V. VENUGOPAL K.B. SRIKANTH REDDY AND HONNAPPA
Stamp Duty Paid By	: K.V. VENUGOPAL K.B. SRIKANTH REDDY AND HONNAPPA
Stamp Duty Amount(Rs.)	: 1,000 (One Thousand only)

सत्यमेव जयते
Sri Sri Sahardha Pattina Sahakari (R)
Head Off. K.R. Param, Hassan-573 20

Authorized Signatory



RECONSTITUTED PARTNERSHIP DEED

THIS DEED OF PARTNERSHIP is made and entered into Hassan on the 23rd January 2019 between.

01. Sri K.V. Venugopal, S/o Venkatesh aged about 47 years and Residing at Sri Rangadhama, Laxmipuram Extension, Hassan Herein after to be called the 'FIRST PART' as **continuing Partner**.

Statutory Alert:

1. The authenticity of this Stamp Certificate should be verified at "www.shilestamp.com". Any discrepancy in the details on this Certificate and as available on the website renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate
3. In case of any discrepancy please inform the Competent Authority

02. Sri K.B. Srikanthareddy, S/o L: Laxmi Reddy K.B. aged about 50 years and residing at 4th Cross, Near Nethaji School, Vidyanagar, Hassan - 573 201 herein after called the 'SECOND PART' as **continuing Partner**.

AND

03. Sri Honnappa S/o Basavarajegowda aged about 55 year and Residing at "Sowjanya" Gowri Koppalu Road, Vidyanagar, Hassan - 573 201 as **retiring Partner**.

Where the party of the Ist part and IInd Part has been carrying on the business of chemical Fertilizer mixing and Trade in fertilizer dealership, under partnership, under the Name and style of M/s Farmers Ferilizers Company at Sri Manjunatheshwara Enterprises, Plot No: 324, KIADB Industrial Area, H.N.Pura Road, Hassan - 573 201 evidenced by deed of Partnership, dated 09.04.2012 and 01.04.2013.

NOW THIS DEED OF PARTNERSHIP WITNESSTH AS FOLLOWS:

1. Commencement and Duration: That the business of the Firm shall be deemed to have commenced on and with effect from 09.04.2012 and shall be AT WILL.
2. Name & Style of Business: The business of the firm shall be carried on under the name and style M/s Farmers Fertilizers Company (herein after called the firm). It is open to the parties hereto, to change the name of the firm, or carry on the business in any additional name, or names as may be mutually agreed upon by them from time to time.
3. Situation: that the business of the firm shall be carried on at Sri Manjunatheshwara Enterprises, Plot No: 324, H.N. Pura Road, KIADB Industrial, Hassan - 573 201 Or any other place or places as and when decided by the parties.

.....3





4. Nature of Business: That the business of the firm shall be, that carried on, carrying on the business of chemical Fertilizer mixing and Trade in fertilizer dealership, and any other business as may be decided by the parties from time to time.
5. Capital: That the party of First part and Second part are continuing partner shall be introduce the necessary capital as and when is required for the purpose of business and same shall be recorded in the books of accounts. The credit balance standing in the capital account of the partners are entitled for the interest at the rate of 12% per annum. The capital account of the retiring partner has been cleared as on 23.01.2019.
6. Remuneration: That the party of the First and Second part shall be the working Partner of the Firm, who shall look after the day to day affairs of the Firm. The remuneration as prescribed U/s 40 (b) of the IT Act 1961.
7. Management: That the party of the First and second Part shall be the Managing partner, they shall look after the day to day affairs of the business and they are authorized to take the necessary decision in connection with business.
8. Bank Account: That, the account or accounts with the Bank of Bank shall be opened for the purpose of the partnership business in the firm name only, and such account shall be operated, by party of the First and Second part jointly to this deed.

.....4



9. Accounts: That, Proper, complete and regular accounts of all the dealings transactions concerning the partnership shall be made and maintained at the premises of the business. Each parties hereto shall have free access at all reasonable times, without hindrance or interruption from other to inspect, scrutinize and to take copy of the same at his own cost.
10. Accounting year, Profit and loss sharing Ratio: The accounts of Firm shall be closed on 31st March of every year. The Profit and loss Arising from the partnership business after charging interest and Salaries to partners shall be shared and divided between the Partners shall be shared and divided between the partners equally.
11. Borrowings: That, the funds required for proper conducting the Partnership business, may be raised as loans from banks or Outside, in the Firm name only. The connected loan paper shall be Signed by the both the parties. The firm has there is no immovable Property.
12. Conduct of the Partners: That, both the partners hereto shall be faithfull to each other and exhibit true and correct information Concerning the partnership business and they shall work Diligently for the best common advantage and for the betterment of The partnership business.

.....5



13. Arbitration: That, in the event of any dispute that might arise Between the parties hereto in respect of the interpretation, Operation of enforcement of any of the terms and conditions of This deed or in respect of any their matter or things not herein Otherwise provided for the same be referred to for adjudication Of arbitrators.
14. Death or Insolvency of the partners: That the death, retirement, Insolvency or incapacity of any of the partner, shall not dissolve The partnership, it shall be continued by the surviving partners, And by taking the legal heirs of the partner so deceased, retired Declared insolvent, the firm shall be continued by taking new Partners.
15. Retirement: If any partners, desirous to retire from the Partnership he/she by giving one month notice, to the other Partner of this/her intention in that behalf and the partnership. The retiring partner is liable only to get the credit balance standing In his /her capital account. No goodwill shall be payable to the Retiring partner.
16. Dissolution: On dissolution of the partnership firm, the properties And assets of the firm shall be realized and shall be applied first In paying the debts and borrowings of the firm and secondly if the Surplus or deficiency shall be divided in equal ratio, between the Partners.

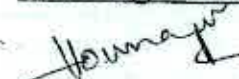
.....6



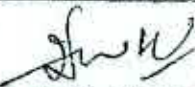
17. Admission: The Partners may bring additional or new partners With the consent of the other partners and the admission of the New partner is on majority.
18. Alterations: Amendments, etc. that any of the above terms and Conditions of the partnership deed may be mutually by consent Of both the partners in writing, may be modified, altered or any Of the terms together deleted or new terms may be added.
19. Savings: That, in all matters, not herein specially provided for The partnership, shall be governed by the Indian Partnership Act 1932 and the rules there under and amended from time to time.

IN WITNESS WHEREOF, we the parties here to sing this deed, as a token of acceptance of the terms and conditions.

Retiring Partner:


(Sri Honnappa)
(Retiring Partner)

Continuing Partner:


(Sri K.V. Venugopal)
(Continuing Partner)

Witness:


(Sri K.B. Srikanthreddy)
(Continuing Partner)

01. 
(N.A. THIMMAIAH)
A-304, Hoysala Commodious Retreat
4 Main, 11 cross, Kodiyalalli, B'golu-52
- 02.

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(Amended)

Government of India

Form GST REG-06

[See Rule 10(1)]

Registration Certificate

Registration Number : 29AADFF3358H1ZR

1	Legal Name	FARMERS FERTILIZERS COMPANY			
2	Trade Name, if any	FARMERS FERTILIZER COMPANY			
3	Constitution of Business	Partnership			
4	Address of Principal Place of Business	KIADB INDUSTRIAL AREA, PLOT NO 324, C/o Sri Manjunath Enterprises Building, H.N Pura Road, HASSAN, Hassan, Karnataka, 573201			
5	Date of Liability	01/07/2017			
6	Date of Validity	From	01/07/2017	To	NA
7	Type of Registration	Regular.			
8	Particulars of Approving Authority	Karnataka Goods and Services Tax Act, 2017			
Signature					
Name		H.NAGENDRA NAIK			
Designation		Asstt Commissioner			
Jurisdictional Office		LVO 240 - HASSAN			
9. Date of issue of Certificate		13.06.2019			
Note: The registration certificate is required to be prominently displayed at all places of Business/Office(s) in the State.					



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Annexure A

Details of Additional Place of Business(s)

GSTIN	29AADFF3358H1ZB
Legal Name	FARMERS FERTILIZERS COMPANY
Trade Name, if any	FARMERS FERTILIZER COMPANY

Total Number of Additional Places of Business(s) in the State 0



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Annexure B

GSTIN 29AADEF3358H1ZB
Legal Name FARMERS FERTILIZERS COMPANY
Trade Name, if any FARMERS FERTILIZER COMPANY

Details of Managing / Authorized Partners

Name KARIKATTEHALLI VENKATESH VENUGOPAL
Designation/Status PARTNER
Resident of State Karnataka

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(Amended)

Government of India

Form GST REG-06

[See Rule 10(1)]

Registration Certificate

Registration Number :29AKDPM8362L1ZJ

1.	Legal Name	ALTHANDA MUTHANNA MANJUNATHAKUMAR		
2.	Trade Name, if any	COORG AGRI CENTRE		
3.	Constitution of Business	Proprietorship		
4.	Address of Principal Place of Business	Upper Ground Floor, Sy.No.38, Block No.11, Madikeri, Kodagu, Karnataka, 571201		
5.	Date of Liability	01/07/2017		
6.	Date of Validity	From	01/07/2017	To NA
7.	Type of Registration	Regular		
8.	Particulars of Approving Authority	Karnataka Goods and Services Tax Act, 2017		
Signature				
Name		RameshNarasaiah		
Designation		Assistant Commissioner, LVO		
Jurisdictional Office		LVO 300 - MADIKERI		
9. Date of issue of Certificate		27/03/2019		
Note: The registration certificate is required to be prominently displayed at all places of Business/Office(s) in the State.				



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Annexure A

Details of Additional Place of Business(s)

GSTIN 29AKDPM8362L1ZJ
Legal Name ALTHANDA MUTHANNA MANJUNATHAKUMAR
Trade Name, if any COORG AGRI CENTRE

Total Number of Additional Places of Business(s) in the State 1

Sr. No.	Address
1	No.2, Block-11, Kohinoor Road, Madikeri, Kodagu, Karnataka, 571201



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Annexure B

GSTIN

29AKDPM8362L1ZJ

Legal Name

ALTHANDA MUTHANNA MANJUNATHAKUMAR

Trade Name, if any

COORG AGRI CENTRE

Details of Proprietor

1



Name

Althanda Muthanna Manjunathakumar

Designation/Status

Proprietor

Resident of State

Karnataka



CRL.P No. 100296 of 2023

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 7TH DAY OF FEBRUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE MOHAMMAD NAWAZ

CRIMINAL PETITION NO. 100296 OF 2023 (482-)BETWEEN:

1. SHRI. MAHESH NAIK
AGE. 47 YEARS, COMPLIANCE OFFICER
ZUARI AGRO CHEMICALS LTD.,
JAIKISAN BHAVAN, ZUARI NAGAR,
GOA 403726

...PETITIONER

(BY SRI. M.J.PEERJADE, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA THROUGH
SHRI. M.R. NAGUR, AGE. 47 YEARS,
FERTILIZER INSPECTOR
ASSISTANT DIRECTOR OF AGRICULTURE (HQ)
OFFICE OF JOINT DIRECTOR OF AGRICULTURE
BAGALKOT, R/O. BAGALKOT, 580011.
REPRESENTED BY SPP
HIGH COURT OF KARNATAKA
BENCH DHARWAD.

...RESPONDENT

(BY SMT. GIRIJA S. HIREMATH, HCGP)

THIS CRIMINAL PETITION IS FILED U/SEC. 482 OF CR.P.C. SEEKING THAT THE COMPLAINT AND CHARGE SHEET AND PROCEEDINGS IN C.C.NO. 573/2021 BEFORE THE COURT OF PRL. CIVIL JUDGE AND J.M.F.C. MUDHOL, AGAINST THE PETITIONER/ACCUSED NO.2 OF THE OFFENCE UNDER CLAUSE OF THE 19 OF THE FERTILIZER CONTROL ORDER 1985 R/W SEC. 3 AND 7 OF THE ESSENTIAL COMMODITIES ACT 1955 BE QUASHED.

Digitally signed
by J. MAMATHA
Location: High
Court of
Karnataka,
Dharwad
Date: 2023.02.10
11:28:37 +0530

J. MAMATHA



THIS PETITION COMING ON FOR ORDERS. THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

Learned High Court Government Pleader takes notice for
respondent/State.

2. The question involved in this petition since being
covered by a decision of this Court rendered in
Crl.P.No.102651/2022 dated 14.09.2022, with the consent of
both the learned counsel, petition is taken up for disposal.

3. The petitioner has sought to quash the proceedings
in C.C.No.573/2021 pending on the file of the Court of Prl. Civil
Judge and JMFC, Mudhol.

4. A private complaint is filed by the Fertilizer
Inspector-cum Assistant Director of Agriculture, (HQ), O/o Joint
Director of Agriculture, Bagalkote, against the petitioner and
another alleging that they have committed an offence under
Clause 19 of the Fertilizer (Control) Order, 1985 ('FCO, 1985'
for short) read with Sections 3 and 7 of the Essential
Commodities Act, for having manufactured and sold the non-
standard fertilizer.



5. Accused No.1 is said to be the owner/proprietor of the firm - M/s.Mahantesh Enterprises, doing business as a retailer in fertilizers and the petitioner/accused No.2 is said to be the Compliance Officer of one ZUARI AGRO CHEMICAL LTD. It is alleged that he is responsible officer for 19-19-19 complex fertilizer of Zuari Agro Chemical Ltd., as per Clause 24 of the FCO, 1985 and the said company has manufactured the non-standard fertilizers in question and supplied to the retailers and thereby committed the aforementioned offence.

6. The charges leveled against the petitioner is that he has violated Clause 19 of the FCO, 1985 read with Sections 3 and 7 of the Essential Commodities Act. Admittedly, the company is not arraigned as an accused in the complaint. In similar circumstances, a co-ordinate bench of this Court in the above referred petition has held as under:

"8. Section 10 of the Essential Commodities Act, 1955, deals with the offence by Companies and it reads as follows:

10. Offences by companies.— (1) *If the person contravening an order made under section 3 is a company, every person who, at the time the contravention was committed, was in charge of, and was*



responsible to, the company for the conduct of the business of the company as well as the company, shall be deemed to be guilty of the contravention and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that the contravention took place without his knowledge or that he exercised all due diligence to prevent such contravention.

(2) Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

9. Perusal of Section 10 of the Essential Commodities Act, 1955 makes it evident that wherever contravention is by a Company, then every person who, at the time the contravention was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company as well as the company, shall be deemed to be guilty of the contravention and shall be liable to be proceeded against and punished accordingly. Therefore, petitioner is being made liable on account of he being an employee of Company in question and



therefore, until and unless the company is arraigned as accused, the petitioner cannot be held responsible.

10. In fact, the Hon'ble Apex Court in **Aneta Hada Vs. Godfather Travels and Tours Private Limited**¹ while considering the offence committed by the company has held as follows:

"53. It is to be borne in mind that Section 141 of the Act is concerned with the offences by the company. It makes the other persons vicariously liable for commission of an offence on the part of the company. As has been stated by us earlier, the vicarious liability gets attracted when the condition precedent laid down in Section 141 of the Act stands satisfied. There can be no dispute that as the liability is penal in nature, a strict construction of the provision would be necessitous and, in a way, the warrant.

56. We have referred to the aforesaid passages only to highlight that there has to be strict observance of the provisions regard being had to the legislative intent because it deals with penal provisions and a penalty is not to be imposed affecting the rights of persons, whether juristic entities or individuals, unless they are arrayed as accused. It is to be kept in mind that the power of punishment is vested in the legislature and that is absolute in Section 141 of the Act which clearly speaks of commission of offence by the company. The learned counsel for the respondents have vehemently

¹ (2012) 5 SCC 661



urged that the use of the term "as well as" in the section is of immense significance and, in its tentacle, it brings in the company as well as the Director and/or other officers who are responsible for the acts of the company and, therefore, a prosecution against the Directors or other officers is tenable even if the company is not arraigned as an accused. The words "as well as" have to be understood in the context.

59. *In view of our aforesaid analysis, we arrive at the irresistible conclusion that for maintaining the prosecution under Section 141 of the Act, arraigning of a company as an accused is imperative. The other categories of offenders can only be brought in the drag-net on the touchstone of vicarious liability as the same has been stipulated in the provision itself. We say so on the basis of the ratio laid down in C.V. Parekh [(1970) 3 SCC 491 : 1971 SCC (Cri) 97] which is a three-Judge Bench decision. Thus, the view expressed in Sheoratan Agarwal [(1984) 4 SCC 352 : 1984 SCC (Cri) 620] does not correctly lay down the law and, accordingly, is hereby overruled. The decision in Anil Hada [(2000) 1 SCC 1 : 2001 SCC (Cri) 174] is overruled with the qualifier as stated in para 51. The decision in Modi Distillery [(1987) 3 SCC 684 : 1987 SCC (Cri) 632] has to be treated to be restricted to its own facts as has been explained by us hereinabove."*

7. In the light of the above decision, proceedings against the petitioner is not sustainable in law.

45



- 7 -

CRL.P No. 100296 of 2023

8. Hence, the following:

ORDER

- i) Petition is allowed,
- ii) The proceedings against the petitioner/accused No.1 in C.C.No.573/2021 on the file of the Court of Pri. Civil Judge and JMFC, Mudhol, is quashed.

IA-1/2023 is disposed of.

(Sd/-)
JUDGE

JM
List No.: 1 Sl No.: 54

126

IN THE HIGH COURT OF KARNATAKA AT

Wp

2025



Plaintiff/s, Petitioner/s
Appellant/s, Complainant/s
Decree - Holder/s/Caveator

Vs.

Defendant/s Respondent/s
Opponent/s Accused
Judgement

A M Manjunatha Kumar

State of Karnataka

we A M Manjunatha Kumar & Srikanth Reddy
RB



the Petitioner Nos. 1 In the above
matter here by appoint and retain

Sri/Smt Nitin Ramesh, Manasi Sharma, Muni Singh C
Arlene Koshy, Veerabata Reddy C

to appear act and plead for me/us in the above matter and to conduct/prosecute and
defend the same in all interlocutory or miscellaneous proceedings connected with the
same or with any decree or orders passed therein appeals and or other proceedings
arising there from and also in proceedings for review of judgment and for leave to
appeal to Supreme Court and to obtain return of any documents filed therein or receive
any money which may be payable to me/us.

2. I/We hereby authorise him/them on my/our behalf to enter into a compromise in the
above matter, to execute any decree/order therein to appeal from any
decree/order/therein and to appeal to act to plead in such appeal in any preferred by
any other party from any decree/other therein.

I/We further agree that if I/We fail to pay the fees agreed upon or to give due
instructions at all stages/he they is/are at liberty to retire from the case and recover all
amounts due to him / them and retain all my our copies till such dues are paid.

Executed by me/us this 16 day of January 2025 Bangalore

COORG AGRI CENTRE

For FARMERS FERTILIZER COMPANY

PROPRIETOR

(Petitioner No. 1)

Signature/s

Authorised Signatory

Executants are personally known to me and he/has/they have signed before me/us

Satisfied as to the identity of executant's Signature/s

(Where the executant/s are illiterate, blind or unacquainted with the language of
vakalath) Certified, that the contents were explained to the executant/s in my presence
in language known to him/them who appear/s perfectly to understand the
same and has/have signed in the presence.

Accepted

NITIN RAMESH
KAR/3626/2004

Address for Service

Name KAR/2232/16 Roll No.
(Manasi Sharma)

Name Roll No. KAR/2220/16
(MANUSI SHARMA)

NITIN RAMESH

ADVOCATE

No. 6, Vishwanatha Rao Road,
Off Race Course Road,
Madhavanagar, Bangalore - 560001
Email: nitinramesh@nitichambers.com
Mob: 9900493990

Advocate for Petitioners

Place: Bangalore

Date: 16/01/2025

ARLENE KOSHY
KAR/1966/19

C.V. Reddy
(G. Veerabata Reddy)
KAR/19689/2021



ಭಾರತ ಸರ್ಕಾರ
Government of India



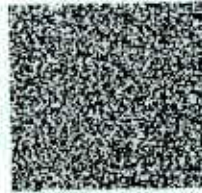
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Government of India

ನೋಂದಣಿ ಸಂಖ್ಯೆ Enrolment No.: 0000/00585/34275

Issue Date: 20/07/2019

To:
ಶ್ರೀಕಾಂತ್ ರೆಡ್ಡಿ ಕೆ.ಬಿ.
Srikanth Reddy K B
C/O late K B Jayashini Reddy
27 Saptagin Nilaya
O V G Road
Vidyannagar (Hassan)
Vidyannagar (Hassan)
Hassan Karnataka - 573202
9480310309

Signature valid



ನಿಮ್ಮ Aadhaar ಸಂಖ್ಯೆ / Your Aadhaar No.

6943 5615 2091

VID : 9195 0777 9872 8946

ನನ್ನ ಹೆಸರು ನನ್ನ ಗುರುತು



ಭಾರತ ಸರ್ಕಾರ
Government of India

Issue Date: 17/07/2019



ಶ್ರೀಕಾಂತ್ ರೆಡ್ಡಿ ಕೆ.ಬಿ.
Srikanth Reddy K B
ದಿ. ಜನನ/DOB: 01/05/1968
ಲಿಂಗ/SEX: MALE

Issue Date: 20/07/2019

6943 5615 2091

VID : 9195 0777 9872 8946

ನನ್ನ ಹೆಸರು ನನ್ನ ಗುರುತು



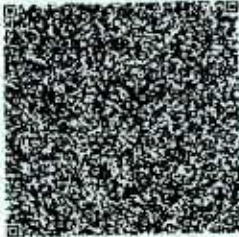

ಭಾರತ ಸರ್ಕಾರ
Government of India

ಭಾರತೀಯ ವಿಶಿಷ್ಟ ಗುರುತು ಪ್ರಾಧಿಕಾರ
Unique Identification Authority of India

ನೋಂದಣಿ ಸಂಖ್ಯೆ Enrolment No.: 0636/00487/79993

To
ಎ ಎಂ ಮಂಜುನಾಥ್ ಕುಮಾರ್
A M Manjunatha Kumar
S/O A B Muthanna
85, Shiva Krupa
Behind I T I
Madikeri Town
Madikeri
Kodagu Karnataka - 571201
9448433170

Signature Not Verified



ನಿಮ್ಮ ಆಧಾರ್ ಸಂಖ್ಯೆ / Your Aadhaar No. :
5559 2031 9088
VID : 9121 4732 7764 7712
ನನ್ನ ಆಧಾರ್. ನನ್ನ ಗುರುತು



ಭಾರತ ಸರ್ಕಾರ
Government of India



ಎ ಎಂ ಮಂಜುನಾಥ್ ಕುಮಾರ್
A M Manjunatha Kumar
ಹುಟ್ಟು ದಿನಾಂಕ/DOB: 05/05/1961
ಪುರುಷ/ MALE

5559 2031 9088
VID : 9121 4732 7764 7712
ನನ್ನ ಆಧಾರ್. ನನ್ನ ಗುರುತು




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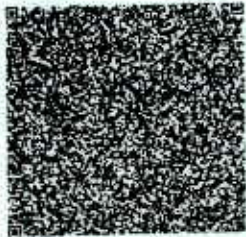
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ವಿಳಾಸ:
S/O ಎ ಎಂ ಮುತ್ತು, # 85, ಶಿವ ಕೃಪ, ಬಿ ಟಿ ಬಿ ಹಿಂಭಾಗ, ಮಡಿಕೇರಿ ಟೌನ್, ಮಡಿಕೇರಿ, ಕೊಡಗು, ಕರ್ನಾಟಕ - 571201

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